



Southeastern Pennsylvania Transportation Authority

Legal Division

1234 Market Street, 5th Floor
Philadelphia, PA 19107-3780

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(215) 580-7078 (Fax)

Direct Dial Number:
215-580-7320

June 14, 2011

Certified Mail /
Return Receipt Requested
7010 1870 0000 3663 7649

Rosemary Chiavetta, Secretary
Commonwealth of Pennsylvania
Pennsylvania Public Utility Commission
North Office Building
P.O. Box 3265
Harrisburg, PA 17105-3265

RECEIVED

JUN 14 2011

PA PUBLIC UTILITY COMMISSION
SECRETARY'S BUREAU

Re: Application of the Southeastern Pennsylvania Transportation Authority's ("SEPTA")
for approval of the alteration of the crossing AAR No. 589-813-S where Oxford
Avenue (SR 232) crosses at-grade the tracks of SEPTA located in the City of
Philadelphia, Pennsylvania.

SEPTA Corporate Department File No. CD3637

Dear Ms. Chiavetta:

Enclosed is an original and three copies of the above Application. Please file these and time-stamp and return the additional (fourth copy) to me in the enclosed self-addressed stamped envelope. The accompanying Certificate of Service indicates that a copy of this Application was mailed to all listed parties.

I am requesting that this Application be expedited. I earlier spoke with Rodney Bender of the Railroad Safety Division at PUC and he indicated that this Application should be directed to his attention when it is received.

Thank you.

Sincerely,

Joseph J. Devanney
Senior Counsel

JJD:lh
Enclosures

c: Certificate of Service

BEFORE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

In re: : Application Docket No.: _____

Application of the Southeastern Pennsylvania :
Transportation Authority's ("SEPTA") for :
approval of the alteration of the crossing AAR :
No. 589-813-S where Oxford Avenue (SR :
232) crosses at-grade the tracks of SEPTA :
located in the City of Philadelphia, :
Pennsylvania.

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**PA PUBLIC UTILITY COMMISSION
SECRETARY'S BUREAU**

APPLICATION FOR APPROVAL OF THE
ALTERATION OF AN EXISTING GRADE CROSSING
(66 P.C.S.A. § 2702)

TO THE COMMISSION:

1. The Applicant is Southeastern Pennsylvania Transportation Authority ("SEPTA"), with its principle address at 1234 Market Street, 10th Floor, Philadelphia, PA 19107-3780.

2. Applicant's attorney is Joseph J. Devanney, SEPTA Legal Division, 1234 Market Street, 5th Floor, Philadelphia, PA 19107-3780.

3. SEPTA is a body corporate and politic which exercises the public powers of the Commonwealth of Pennsylvania as an agency and instrumentality thereof.

4. SEPTA herein seeks the approval of the Public Utility Commission ("Commission") to replace the existing rubber surface of the at-grade crossing with a full-depth precast concrete modular crossing surface (Star Trak) where Oxford Avenue (SR 232) crosses the SEPTA Fox Chase branch tracks, AAR No. 589-813-S, in the City of Philadelphia, Pennsylvania. The construction will occur under a full road closure on Oxford Avenue between Verree Road and Rhawn Street. Duration of road closure is anticipated to be five days, starting after 9:00 a.m. on a Thursday until 6:00 p.m. the following Monday with construction planned to begin in August 2011.

5. The attached service list has parties which, to the information and belief of SEPTA, may have an interest in the subject matter of this Application.

6. This work will be performed by SEPTA and funded through SEPTA's

Infrastructure Safety Renewal Program. SEPTA at present values the work at \$200,000.00, with an appropriate contingency for unexpected costs.

7. The Pennsylvania Department of Transportation, Traffic Volume Map for Philadelphia County dated 2009, shows an approximate Average Annual Daily Traffic, AADT, number of 15,000 for this highway route.

8. The construction is part of a program to renew existing at-grade crossing surfaces and keeping them in a state of good repair throughout the SEPTA regional railroad system. The grade crossing project will also improve the street surface through the crossing area.

WHEREFORE, Applicant SEPTA respectfully requests your Honorable Commission to approve said Application as promptly as possible.

Respectfully submitted,

Date: June 14, 2011

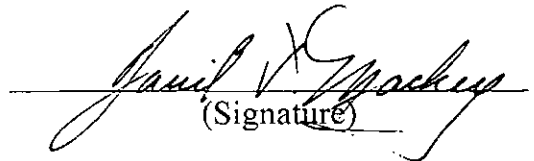


Joseph J. Devanney
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Attorney for
Southeastern Pennsylvania
Transportation Authority
Legal Division
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Philadelphia, PA 19107-3780
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Fax: 215-580-7078
Email: jdevanney@septa.org

VERIFICATION

I, David Mackey, being dully sworn according to law, depose, and say, that I am a Project Manager of the Southeastern Pennsylvania Transportation Authority ("SEPTA"); that I am authorized by SEPTA to and do make this Verification for it; and that the facts herein set forth are true and correct to the best of my knowledge, information and belief, and that I expect that SEPTA will be able to prove the same at any hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa. C.S. § 4904 (relating to unsworn falsification to authorities).

Date: June 14, 2011


(Signature)

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SECRETARY'S BUREAU

CERTIFICATE OF SERVICE

I, Joseph J. Devanney, of the Southeastern Pennsylvania Transportation Authority ("SEPTA") hereby certify that on the date listed below a true and correct copy of the within Application was served upon the following parties by first class mail, postage prepaid:

Philadelphia Department of Streets
Nancy Sen
1401 John F. Kennedy Boulevard
Room 940
Philadelphia, PA 19102

Comcast Cable Communications
Susan Van Allen, Esquire
1701 JFK Boulevard
One Comcast Center
Philadelphia, PA 19103

PECO Energy
Louis Robinson, Senior Engineer
830 Schuylkill Avenue
Philadelphia, PA 19146

Philadelphia Gas Works
John Lennon
800 West Montgomery Avenue, 2nd Floor
Philadelphia, PA 19122

Philadelphia Water Department
Nikunj Karumsi
1101 Market Street
Aramark Tower, 2nd floor
Philadelphia, PA 19107

Pennsylvania Department of Transportation
Sonny Bocchinfuso
7000 Geerdes Boulevard
King of Prussia, PA 19406

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PA PUBLIC UTILITY COMMISSION
SECRETARY'S BUREAU

Pennsylvania Department of Transportation
Gina D'Alfonso, Esquire
P.O. Box 8212
Harrisburg, PA 17105-3128

Philadelphia Department of Streets
Patrick O'Donnell
980 Municipal Service Building
1401 John F. Kennedy Boulevard
Philadelphia, PA 19102

Date: June 14, 2011



Joseph J. Devanney, Esquire
Attorney for SEPTA



1234 Market Street
Philadelphia, PA 19107-3780

Southeastern Pennsylvania Transportation Authority
Safety • Service • Continuous Improvement



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Pennsylvania Public Utility Commission
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